Agreement Officer's Representative (AOR) Designation
Cooperative Agreement Administration

TO: Margaret "Peggy" Carlson

FROM: Sara Bame-Kum, Agreement Officer (AO), M/OAA

SUBJECT: Cooperative Agreement Administration Authorities

DATE: September 26, 2023

REF: Cooperative Agreement Number 7200AA23LE00014 with Partners of the Americas (POA)

You have been nominated to be the designated representative to provide technical and administrative oversight of the above-referenced assistance award. In this letter, I formally accept this nomination and designate you the Agreement Officer's Representative (AOR) for the award. As the AOR, you must work as part of a team with me (or my successor AO) to ensure that USAID exercises prudent management over its assistance funds. This letter and the relevant sections of Automated Directives System (ADS) **Chapter 303, Grants and Cooperative Agreements to Non-Governmental Organizations**, state the specific duties, authorities, and limitations that accompany this designation. Your familiarity with **ADS 303**, **2 CFR 200 Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards**, USAID's implementing regulation **2 CFR 700 USAID Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards**, and **Acquisition and Assistance Policy Directives (AAPDs**) issued periodically that affect your duties as AOR is critical to carrying out your responsibilities successfully. You should maintain frequent liaison and direct communications with the recipient, but you must understand that the nature of the relationship is that of supporting their public purpose and not for obtaining the recipient's technical assistance or services for USAID.

As an AOR, you may be held personally liable for unauthorized acts. In order to perform these functions you must be FAC-COR Certified with eligibility at AOR Level **II**.

You must ensure that your AOR eligibility does not lapse. If it lapses, you must immediately notify the AO and contact the Acquisition Career Manager in the Professional Development and Training Division or send an email to **PDTandMe@usaid.gov** for consultation on next steps to regain your eligibility. The AO

will revoke your AOR delegation upon notification that your eligibility has lapsed. Failure to inform the AO that your eligibility has lapsed and continuing to perform the functions/duties of an AOR will result in you acting without authority and potentially making unauthorized commitments. You will be held accountable and required to accept responsibility for the unauthorized commitment, and you must assist the AO in processing all documentation required to formalize the commitment. Properly discharging your duties and responsibilities as an AOR minimizes your risk of facing disciplinary action. The areas in which you must be particularly cautious involve misuse of the authority delegated in this letter and financial management responsibilities because your improper actions could indicate gross negligence.

- In Cooperative Agreement (CA) Administration, this involves exceeding your authority as an AOR and taking actions that are beyond your authority as delegated in this letter. If you have any questions in this area, contact the AO for advice BEFORE you take any action.

- In Financial Management, your risk increases when you act in a manner that is other than what would be expected of a reasonable individual. At a minimum, a reasonable individual would be expected to

    - Take reasonable steps to assure that the recipient has submitted all required program and financial reports;

    - Make logical decisions from the information they have available (even if it isn't complete); and

    - Document and provide justification for the action. The documentation need not be formal or extensive, but it should be easily understood by an auditor or other third-party individual reviewing it.

I. RESPONSIBILITIES

As AOR, you must read the entire cooperative agreement and thoroughly acquaint yourself with its purpose, terms, conditions, and the respective roles and responsibilities of the recipient, the AO, and the AOR in ensuring it accomplishes its purpose. You should also periodically review the cooperative agreement to maintain familiarity with its terms and conditions.

AOR responsibilities include:

A. Monitoring. You are responsible for monitoring the recipient's progress in achieving the objectives of the Program Description in the subject award and for verifying that the recipient's activities being funded by USAID under the referenced award conform to the terms and conditions of that award. For example, U.S. organization recipients that expend $750,000 or more in Federal funds during a fiscal year must obtain a single or program-specific audit conducted for that year in accordance with **2 CFR 200, Subpart F**. Non-U.S. organization recipients that expend $750,000 or more in

Federal funds during a fiscal year must also obtain an annual audit in accordance with **ADS 591, Financial Audits of USAID Contractors, Recipients, and Host Government**, section **591.3.2.1**.

As part of monitoring, you are responsible for the following:

- Complete a performance review within 45 calendar days after the award completion date (see **Performance Review** for additional procedures and the mandatory template).

- Ensure that site visits are conducted in accordance with Agency policy in **ADS 201** and related Mission Orders. The AO or AOR must write a brief report for each visit highlighting the findings and file the report in the official award file in the Agency Secure Image and Storage Tracking (ASIST) System.

- Monitor the recipient's compliance with the approved branding strategy and marking plan under this cooperative agreement and fulfill the Agency's AOR duties related to marking and branding in accordance with ADS 320.2 and ADS 320.3.1.3.

B. Cooperative Agreement Revisions. You must make written recommendations to the AO when any changes to the Program Description, technical provisions, and/or any other term or condition of the award are necessary, along with a justification for the proposed action.

C. Substantial Involvement. You are responsible for any USAID substantial involvement (see **ADS 303.3.11)** specifically delegated to the AOR in the schedule of the cooperative agreement in the section entitled "Substantial Involvement" or as delegated below:

- Approval of the Recipient's Annual and LOP Work Plans and Country F2F Projects, and any updates or revisions to these documents;
- Concurrence on Key Personnel - F2F Program Director and F2F Country Directors;
- Approval of F2F volunteer assignments outside of normal program parameters;
- Approval of the Recipient's Monitoring, Evaluation and Learning Plan;
- Concurrence in Requests for Associate Award applications and Buy-ins; and
- Monitoring Recipient's Compliance with F2F IEE requirements.

D. Financial Management. Although the responsibility for making payments and accounting for funds and balances rests in the Bureau for Management, Office of the Chief Financial Officer (M/CFO) or overseas Controller, you must administer

financial management responsibilities by:

- Ensuring that all funding actions comply with USAID's forward funding guidelines in **ADS 602, Forward Funding of Program Funds**.

- Reviewing the recipient's request for payments or financial reports and providing or denying your administrative approval if required by the policy and required procedures in **ADS Chapter 630, Payables Management**.

- Monitoring the financial status of the award on a regular basis to ensure that the level of funding is the minimum necessary. If the funding exceeds forward funding guidelines without proper authorization, you must adjust the next incremental funding amount to achieve compliance with the forward funding guidelines.

- Developing accrued expenditures on a quarterly basis in accordance with **ADS 631, Accrued Expenditures**, and instructions from M/CFO or the Mission controller. Please note that you must accomplish this task using information on hand and must not interpret this requirement as authority to request any additional financial reports from the recipient.

- Reviewing and documenting the review (for example, signing and dating a copy of the financial report) of financial status reports for U.S. organizations with letters of credit and periodic advance payments to monitor financial progress.

    - Contact the recipient for further explanation if questions arise regarding the appropriateness of expenditures, and
    - Contact the AO if not satisfied with the recipient's explanation.

- Notifying the AO if at any point it is apparent that the funds are no longer needed for the purpose for which they were obligated. Guidance on this process is found in **ADS 621, Obligations**, and **Mandatory Reference 621maa, Deobligation Guidebook**.

- Monitoring recipient compliance with the requirement for them to obtain any host country tax exemptions for which they are eligible.

- Monitoring any cost sharing requirements.

- Upon completion of the work under the award, reviewing any unliquidated obligation balance in the award and working with the AO to deobligate excess funds before beginning close-out actions.

E. Security. You must coordinate with the Office of Security (SEC) or its designee to obtain necessary security clearances and appropriate identification for the recipient and designated personnel if the CA is classified in accordance with **ADS Chapter**

567, Classified Contracts Under USAID's National Industrial Security Program. If this cooperative agreement is unclassified, but requires recipient employees to have building passes to enter either the USAID Headquarters building or a Mission or Embassy overseas, you must coordinate with your Bureau or Office Administrative Management Officer, Mission Executive Officer, or other individual responsible for requesting passes, see **ADS 567** and **ADS 565, Domestic Security Programs**. You must also notify SEC whenever any recipient personnel no longer need a building pass.

When the agreement has ended, you must collect from the recipient any identification cards that have been issued to the recipient employees (including the Personal Identity Verification [PIV] card/Facility Access Card [FAC]) and remote authentication token. You must return the identification cards to SEC and the remote authentication token to the B/IO Administrative Management Staff (AMS).

F. Other specific functions/authorities, as provided herein:

- Approval of international travel;
- Monitor compliance with award Branding Strategy and Marking Plan;
- Review deliverables against the requirements in award section A.5 Reporting and Evaluation Requirements and accept or decline;
- Review and approve award costs;
- Perform property administration (not to include property disposition);
- Ensure processing and execution of duty-free entry certificates;
- Report to the AO any inadequacies noted in specifications;
- Assist in evaluating and make recommendations for acceptance or rejection of waivers and deviations; and
- Determine that all applicable administration actions and all required work of the award have been completed by the contractor.

II. ADMINISTRATION

A. Communications. **ADS 303** contains the policy directives and required procedures for our joint administration of grants and cooperative agreements. Agreement officers are the mandatory control point of record for all official communication that would constitute an amendment to the award; therefore, please ensure that you provide the AO, within two business days after you transmit it to the recipient, a copy of any communications between you and the recipient that may lead to an amendment to the award or that may affect the recipient's rights or responsibilities under this cooperative agreement. You are responsible for reviewing all performance and financial reports for adequacy and responsiveness and for requesting that I take the necessary action when these reports are not submitted, are inadequate, or indicate a problem.

B. AOR Files. As the AOR, you have an important responsibility for establishing and

maintaining adequate AOR files. These files are your primary tools for carrying out your duties and responsibilities as the AOR for this cooperative agreement and must include all correspondence with the recipient and document all actions you take as AOR. These files will also help successor AORs to understand your actions as AOR and the reasons behind such actions, as well as to have adequate files for audit purposes.

You must ensure that the files contain the following:

- All correspondence between the AOR and the recipient;
- The names of technical and administrative personnel assisting the AOR;
- Site visit documentation, if applicable;
- Records of AOR approvals, invoices, and other financial documents, initialed to demonstrate AOR review, as well as other administrative paperwork and correspondence;
- The basis for the AOR's accrual estimates, see **ADS 631, Accruals** and **ADS 631sab, Accrual Documentation**;
- Financial documentation to support their activities in the financial management area such as the SF-425 (**ADS 630, Payables Management**);
- Budget pipeline analysis documentation; and
- Documentation of any other action taken by the AOR in accordance with this delegation of authority.

ASIST is the Agency's official electronic repository for all Acquisition & Assistance (A&A) award documentation, including copies of the AOR designation letter(s), the award, and amendments. AORs must maintain award files in ASIST. You must not use text messages or other messaging services for any official communications with the recipient (see **ADS 545, Information Systems Security**).

III. LIMITATIONS

A. Scope of Authority/Avoiding Unauthorized Commitments. Your authority does not include making any changes in the Program Description, the period of performance, the terms and conditions of the award, or the total estimated budget. I must caution you that actions you take or directions you give beyond the authorities provided in this memorandum or in **ADS 303** may create unauthorized commitments under the award. Any such unauthorized actions may lead to serious disputes and legal action that unnecessarily tie up Agency personnel and resources. You may be held personally liable for such actions and in the worst case, you may be subject to

disciplinary action if it is determined that the unauthorized commitment is a violation of the Anti-Deficiency Act, **31 U.S.C. secs. 1341-1351**, which provides for criminal penalties.

B. Re-delegation. You may not re-delegate the authorities or responsibilities contained in this memorandum to any other person. When carrying out your AOR duties, you may ask others to assist you, but such assistance has limits. For example, you may ask others to conduct fact-finding, assist with monitoring, or make recommendations regarding actions you may take as AOR. However, anyone assisting you must not take any action that directly affects the recipient's rights or ability to carry out the program for which the cooperative agreement was awarded. The ultimate responsibility for any actions taken, by you or others assisting you, remains with you.

C. Designation of the Alternate AOR. In your absence, and only in your absence, **John Peters** is hereby authorized to act on your behalf. If this individual is not available to carry out your AOR responsibilities during your absence, notify the AO as soon as possible to discuss alternatives. To ensure minimal disruptions, please notify the recipient and the AO as soon as possible when you will be unavailable to discharge your AOR responsibilities for a period of more than two weeks. If the alternate is not available in your absence, direct the recipient to receive any guidance from the AO.

D. Duration of AOR Designation. This designation is effective for the life of the award referenced on the first page of this designation letter, unless the AO revokes it in writing, you resign from this position, you transfer to a new position in which you no longer have technical cognizance for this activity, or your AOR eligibility has lapsed. If you cannot fulfill your responsibilities as AOR for any reason, please notify the AO as soon as possible in order to ensure the timely designation of a successor.

IV. TRAINING

USAID established requirements in **ADS 303.3.15** that individuals must meet to be eligible for designation as an AOR. In addition to the FAC-COR certification and Agency-specific training courses you met for eligibility to be delegated the authority in this letter, you are required to complete at least eight Continuous Learning Points (CLPs) every two years for AOR Level I or 40 hours of CLPs every two years in order to maintain AOR Level II. Failure to complete the required continuous learning requirements will result in a lapse in your AOR eligibility and loss of authority to perform AOR functions.

V. STANDARDS OF CONDUCT AND CONFLICTS OF INTEREST

As an employee of the Federal Government, you must respect and adhere to the principles of ethical conduct set forth in Title 5 of the Code of Federal Regulations, Part 2635—Standards of Ethical Conduct for Employees of the Executive Branch, **5 CFR 2635**. You must notify the AO immediately of any suspected fraud, bribery, conflict of interest, or improper conduct on the part of the recipient or any member of its staff.

As an AOR, you are responsible for protecting the U.S. Government's interests while supporting its reputation for fair and equal dealings with all its partners, including cooperative agreement (CA) recipients. Therefore, if you have any direct or indirect financial interests in violation of **18 U.S.C. 208** and/or **CFR 2635.401** and **5 CFR 2635.501** that may place you in a position where there is a conflict between your private interests and the public interest of the United States, you must immediately inform your supervisor, the AO, and the Assistant General Counsel for Ethics Administration (GC/EA) of this conflict so that appropriate action may be taken. As AOR, you must avoid the appearance of such conflict in order to preserve public confidence in the U.S. Government (USG) employee's conduct of business. Furthermore, you agree to be aware of the post-employment restrictions on former USG employees, including Personal Service Contractors (PSCs), found in **18 U.S.C. 207** to detect possible violations.

ACKNOWLEDGEMENT

Your signature below confirms that you

(1) Accept this appointment,

(2) Agree to comply with all duties, responsibilities, and limitations outlined in this letter, particularly those pertaining to conflicts of interest, by agreeing to conduct business dealings to avoid conflicts of interest and in a completely impartial manner,

(3) Hold an unlapsed FAC-COR certification, have completed the Agency-specific training requirements required for eligibility at the applicable AOR designation level in this letter, and will complete any other requirements and/or training necessary to keep your eligibility from lapsing or to obtain an AOR Level II eligibility if required by your designation letter. The Agency-specific courses currently required are:

AOR Level 1:

- USAID 110 Assistance*,
- USAID 103 – PDT ASIST Overview,
- USAID 101 – USAID Accruals On-Line Training, and

AOR Level 2:

- All Agency-specific Level 1 Requirements listed above,
- USAID 201 Assistance*; and

(4) Meet any other eligibility requirements in ADS 303.3.15.

I HEREBY ACCEPT THIS APPOINTMENT AND ACKNOWLEDGE MY DUTIES AND RESPONSIBILITIES AS AOR:

Margaret Carlson _____ 9-27-23 _____

AGREEMENT OFFICER'S REPRESENTATIVE — DATE

After signing, return this original memorandum (and retain a copy) to me within **1** days. I will acknowledge your acceptance of this designation by signing below and send a copy to you and the others indicated below.

Sara Bame-Kum _____ Digitally signed by Sara Bame-Kum Date: 2023.09.27 12:04:31 -04'00' _____

AGREEMENT OFFICER — DATE

cc:

John Peters, Alternate AOR
Letter of Credit (loc@usaid.gov) and OBLDOCCMP (OBLDOCCMP@usaid.gov), Paying Office
Tyrell Kahan, AOR's supervisor
POA, Recipient

Alternate Agreement Officer's Representative's (AOR's) Designation – Cooperative Agreement Administration

TO: John Peters
REF: Cooperative Agreement Number 7200AA23LE00014 with Partners of the Americas (POA)

ACKNOWLEDGEMENT

Your signature below confirms that you:

(1) Accept this appointment;

(2) Agree to comply with all duties, responsibilities, and limitations outlined in this letter, particularly those pertaining to conflicts of interest, by agreeing to conduct business dealings to avoid conflicts of interest and in a completely impartial manner;

(3) Understand that you are only authorized to perform these duties in the absence of the AOR;

(4) Hold an unlapsed FAC-COR certification, have completed the Agency-specific training requirements required for eligibility at the applicable AOR designation level in this letter, and will complete any other requirements and/or training necessary to keep your eligibility from lapsing or to obtain an AOR Level II eligibility if required by your designation letter. The Agency-specific courses currently required are:

AOR Level 1:

- USAID 110 Assistance*,
- USAID 103 – PDT ASIST Overview,
- USAID 101 – USAID Accruals On-Line Training, and

AOR Level 2:

- All Agency-specific Level 1 Requirements listed above,
- USAID 201 Assistance*; and

(5) Meet any other eligibility requirements in ADS 303.3.15.

I HEREBY ACCEPT THIS APPOINTMENT AND ACKNOWLEDGE MY DUTIES AND RESPONSIBILITIES AS ALTERNATE AOR:

John Peters _____ 9/26/2023 _____
ALT. AGREEMENT OFFICER'S DATE

REPRESENTATIVE

After signing, return this original memorandum (and retain a copy) to me within days. I will acknowledge your acceptance of this designation by signing below and send a copy to you and the others indicated below.

Sara Bame-Kum Digitally signed by Sara Bame-Kum
Date: 2023.09.27 12:05:06 -04'00'

AGREEMENT OFFICER DATE

cc:
Letter of Credit (loc@usaid.gov) and OBLDOCCMP (OBLDOCCMP@usaid.gov), Paying Office
Julie March, Alternate AOR's supervisor